

24STCV34519 24STCV34519

County: los-angeles

Division: Civil Law and Motion

Department: 406

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Case Number: 24STCV34519 Hearing Date: August 21, 2026 Dept: 406

MARK GORBONOS,

Plaintiff,

v.

ILYA GORBONOS, et al.,

Defendants.

Case No.: 24STCV34519

Hearing Date: August 21, 2026

[TENTATIVE]

order RE:

defendant 2031 Ivar LLC's motion for
leave to file cross-complaint

BACKGROUND

On December 30, 2024, Plaintiff Mark

Gorbonos filed this action against Defendants Ilya Gorbonos, Julia Leytes,

STRS, Inc., Angelica Cherpakova, and Royal Hills Realty, Inc. Plaintiff added

2031 Ivar LLC as a defendant in the First Amended Complaint. On November 25,

2025, Plaintiff filed the operative Third Amended Complaint. The TAC asserts

causes of action for (1) fraud, (2) conversion, (3) violation of Penal Code

section 496, (4-5) breach of fiduciary duty, and (6) quiet title.

Plaintiff alleges that he relied on Defendants to assist with his properties and businesses because he traveled often and had limited English proficiency. Plaintiff's son (Defendant Ilya Gorbonos) and his wife (Defendant Julia Leytes) were entrusted with managing Plaintiff's properties, but allegedly conspired with the other Defendants to defraud Plaintiff. Defendants allegedly misappropriated funds, encumbered the properties, caused defaults and foreclosure sales, transferred the properties to themselves, or manipulated Plaintiff into paying companies owned by Defendant Gorbonos.

On June 22, 2026, Defendant 2031 Ivar LLC filed the instant motion for leave to file a cross-complaint.

DISCUSSION

"[I]n all cases where a party has an attorney in the action or proceeding, the service of papers, when required, must be upon the attorney instead of the party." (Code Civ. Proc., § 1015.)

Here, the proof of service attached to the motion indicates that Defendant served the motion directly to Plaintiff, even though Plaintiff is represented by counsel. The purported emails and mailing receipts attached to Defendant's reply cannot substitute for a proper proof of service. (See Code Civ. Proc., §§ 1013a, 1013b.) Therefore, the motion is denied for lack of proper service.

The Court notes, however, that the proposed cross-complaint appears to be compulsory. Therefore, the Court would be inclined to grant the motion, given proper service.

CONCLUSION

Defendant 2031 Ivar LLC's motion for leave to file a cross-complaint is DENIED without prejudice to Defendant filing a properly noticed motion.